

25STCV38450 25STCV38450

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Case Number: 25STCV38450 Hearing Date: August 19, 2026 Dept: 316

BACKGROUND

On December 31, 2025, Plaintiff Destiny

Enedina Smith filed a complaint against Defendants State of California, California Department of Corrections and Rehabilitation, Charles Elliot, and Leslie Cherry. The complaint alleges six causes of action stemming from alleged sexual harassment and discrimination.

On May 15, 2026, Defendant California

Department of Corrections and Rehabilitation filed a Motion to Strike.

On August 6, 2026, Plaintiff filed an opposition.

On August 12, 2026, Defendant filed a reply.

TENTATIVE RULING

Defendant's Motion to

Strike is GRANTED in part and DENIED in part. The motion is granted with regard to the request to strike Plaintiff's request for punitive or exemplary damages. The remainder of the motion is denied. Plaintiff is granted leave to amend the complaint to clarify that punitive or exemplary damages are not sought against the public entity Defendants. Plaintiff has twenty days to file and serve an amended complaint.

LEGAL STANDARD

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(2).) “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.)

DISCUSSION

I.

Meet
and Confer

Before filing a motion to strike, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference. (Code Civ. Pro. § 435.5, subd. (a).) The moving party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 435.5, subd. (a)(3).)

“A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (Code Civ. Pro. § 435.5, subd. (a)(4).)

Here, the parties did not meet and confer on Defendant's motion. (See Younger Decl., ¶ 3.) Thus, the meet and confer requirement has not been satisfied. (See Code Civ. Pro. § 435.5, subd. (a).) Despite this, the Court will consider the merits of Defendant's motion. (See Code Civ. Pro. § 435.5, subd. (a)(4).)

II.

Analysis

Defendant seeks to strike the State of California as a defendant because it asserts that its inclusion as a defendant is improper and unnecessary. (See Motion, pp. 5:10-6:7.) Defendant's

request is outside the scope of a motion to strike. Although a motion to strike may be used to strike improper, irrelevant, and nonconforming pleadings, it cannot be used to challenge the legal sufficiency of a cause of action against a defendant. Challenging causes of action brought against a defendant is a matter exclusively reserved for demurrers. (See Code Civ. Proc., § 430.10, subd. (e).) For this reason, the Court will deny the motion to strike the State of California as a defendant.

Defendant also seeks to strike Plaintiff's request for exemplary damages against CDCR and the State of California. (See Motion, pp. 6:9-7:6.) Plaintiff recognizes that punitive or exemplary damages cannot be sought against Defendants or the State of California. (See Opp'n, p. 11:24-26 ["Plaintiff does not seek punitive damages from CDCR or from the State of California, and she does not dispute that section 818 forecloses such an award against a public entity.'].) Defendant contends that its motion must still be granted "so that Plaintiff can amend the complaint to reflect the defendants from which she seeks to pursue exemplary/punitive damages." (Reply, p. 4:13-14.) The Court believes the pleadings should be clear that punitive damages are not being sought against the public entity defendants. The Court will grant the portion of the motion directed towards the request for punitive or exemplary damages. Plaintiff is granted leave to file an amended complaint to clarify the Defendants against whom punitive or exemplary damages are sought.

Defendant also seeks to strike Plaintiff's request for pre-judgment interest. (See Motion, p. 7:8-24.) However, Defendant withdraws this argument in its reply. (See Reply, p. 2, fn. 1.) The Court will therefore deny the motion to strike references to prejudgment interest in Plaintiff's complaint.

CONCLUSION

For the foregoing reasons, Defendant's Motion to Strike is GRANTED in part and DENIED in part. The motion is granted with regard to Plaintiff's request for punitive or exemplary damages. The remainder of the motion is denied. Plaintiff is granted leave to amend the complaint to clarify that punitive or exemplary damages are not sought against the public entity Defendants. Plaintiff has twenty days to file and serve an amended complaint.